



E Roz <evanroz@gmail.com>

RE: Compliance

1 message

+WPG725 - CCA RTB <rtb@gov.mb.ca>

Fri, Jan 12, 2024 at 8:59
AM

To: Evan Rosner <evanroz@gmail.com>

Thank you for your email.

Your email has been forwarded to the appropriate department.

Best Regards,

Del

Client Services Officer

Residential Tenancies Branch

-

From: Evan Rosner <evanroz@gmail.com>
Sent: Tuesday, January 9, 2024 2:13 PM
To: +WPG725 - CCA RTB <rtb@gov.mb.ca>
Subject: Compliance

Greetings,

I received the following email from the Landlord in regards to the storage unit that I have used since the beginning of my tenancy at 10-[585 Corydon Ave](#).

"Subject: Storage Lockers. Due to renovations starting in the basement. Residents are to have their storage lockers completely emptied by the end of the day on Wednesday, January 17th, 2024. We thank you for your co-operation. Sincerely, Thorwin Properties" (dated Monday January 8,2024)

I have been a tenant at 10-[585 Corydon Ave](#) since signing a Standard Residential Tenancy Agreement with Winpark Dorchester Properties on April 30, 2011. I have been using the storage unit located in the basement since the beginning of my tenancy. The storage unit # is correlated with my suite #. I have been issued a key that provides access to the storage area as well as the laundry area. All the storage units have been associated with their correlated suites on site. Under the ownership of Winpark Dorchester Properties, each storage unit was labeled with an attached piece of A4 paper that clearly indicated the association between the tenant's suite and storage unit #. These labels have since been removed.

Winpark Dorchester Properties sold its property to MyPlace Reality which has rebranded as Thorwin Properties.

Form 2 (see attached) was not fully completed by Winpark Dorchester Properties as seen in Section C "Services and Facilities Included in Basic Rent". Although water, heat, laundry services, storage facilities, and appliances have been provided since the start of the tenancy these boxes have not been checked. This appears to be an oversight and an error on my part for not being aware that non-completion of Form 2 is a serious issue. There is a reasonable expectation that the services were included in the Standard Residential Tenancy Agreement with Winpark Dorchester Properties as demonstrated by my continued and uninterrupted use of these services and reiterated in discussion with Celena Funk, Property Manager at Thorwin Properties.

I have communicated with Thorwin Properties about the issue of the storage unit (and the laundry services) and proposal for removal since May 4, 2023. As stated by Property Manager Celena Funk on Friday, May 5, 2023, "The Mobile Resident Manager was unaware that your storage locker had been grandfathered in prior to Thorwin Properties purchase of the building. Should at any time we decide to remove the storage units we will apply through the Residential Tenancy Branch for a withdrawal of service."

Further communications with Thorwin Properties have been ignored until recently and since May 4, 2023 I have been requesting that Thorwin Properties follow legislated protocol.

I feel that it is within my right to continue using the storage unit at [585 Corydon Ave](#) and I do not wish to remove my property from the space that I have been provided since the beginning of my tenancy. The RTB has not received Form 9 (Application to Fix Value of Permanent Reduction or Withdrawal of Service) from Thorwin Properties and I have not received Form 8 (Notice to Tenant – Permanent Reduction or Withdrawal of Service (Other than a tenant services reduction or withdrawal)).

I would like to request an investigation and I would like to know what the consequences of not removing my property from the storage unit on Wednesday, January 7, 2024 entails. What response can I expect from the landlord?

Thank you for your time,

Evan Rosner

10-585 Corydon Ave

Winnipeg, MB, Canada

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